

## SECOND AMENDED STATEMENT OF FACTS AND CONTENTIONS (FORM 9A)

WC/2024/227 – Cory Lea Shepherd (Appellant) v Workers' Compensation Regulator (Respondent). Section 550(4), Workers' Compensation and Rehabilitation Act 2003.

Particulars are given by reference to the paragraph numbers of the Appellant's notice to admit facts served on the Respondent on 28 August 2026, to which the Respondent responded on 8 September 2026.

### PART A

Appellant: Cory Lea Shepherd. Employer: State of Queensland (Queensland Health) – Logan Hospital Switchboard. Role: Administration Officer, Switchboard Services, classification AO3, a continuous shift working role.

**Injury:** major depressive disorder with anxious distress (DSM-5 296.23), diagnosed by the Appellant's treating psychiatrist on 24 October 2024.

**The injury is a diagnosed medical condition arising from the Appellant's employment over the course of conduct pleaded at Part B.2 below, between approximately June 2023 and June 2024. It is not pleaded as arising from an event occurring on a single day.** The date of injury recorded on the work capacity certificates of the treating general practitioner is 18 June 2024. That date is the practitioner's and is a matter for the medical evidence; the Appellant asserts no date of onset of his own.

*Particulars: paragraphs 1 to 4, 13 to 16 of the notice to admit facts served 28 August 2026, admitted 8 September 2026.*

### PART B — MATERIAL FACTS

The documentary facts identified below have been admitted to the extent recorded in the Respondent's response of 8 September 2026. Those admissions provide evidence from which the Commission is invited to determine the nature, reasonableness and causal significance of the relevant circumstances.

#### 1. Baseline — the medical record

1.1 The Switchboard receives emergency response notifications and distributes them to the response groups by category of emergency, and maintains the contact and paging information by which that is done.

*Duty engaged: paragraphs 5, 7 to 8, 10 of that notice (the role description).*

1.2 **Prior health.** Before 18 June 2024 the Appellant had not been diagnosed with or treated for depression. The general-practice record of 16 November 2023 (Dr Nanayakkara) records poor sleep with shift work, that the Appellant could not do shifts without a good sleep, "no psychological illness such as depression or psychosis", and mood good, with melatonin and temazepam prescribed that day. **[Tab M1 — general-practice records, Our Medical Ashmore, 1 January 2023 to 1 July 2024, obtained by the Respondent under the Form 29 signed 4 July 2025; Respondent's item 11.]** Relied upon as the contemporaneous record that shift work was affecting the Appellant's sleep, and of what was prescribed for it, before any claim or proceeding. Its clinical significance is a matter for the treating doctors. Private entries unrelated to the injury are redacted on the extracted pages and marked as such.

*Particulars: paragraphs 2, 13, 214, 218, 263 to 265, 269 to 271 of the notice to admit facts served 28 August 2026, admitted 8 September 2026.*

1.3 **The referral of 16 May 2024.** The referral letter of 16 May 2024 (Dr Zhao) renews a referral to a psychiatrist, Dr Amini, for "ongoing care and management". It lists the past medical history as the history-list items "26/10/2022 ADHD" and "26/10/2022 Anxiety", and lists the medications then current, **which include no antidepressant, no anxiolytic and no other psychotropic medication.** **[Tab M1.]** The referral falls within the week in which the matters pleaded at Stressor 1, sub-paragraphs (i) and (n) occurred, and was written the day after the email of 15 May 2024 at 6:23 pm asking the Appellant to retract his email of that afternoon. That sequence is pleaded as to date only; no connection between the two is alleged. The referral is relied upon as part of the chronology of the Appellant's deterioration across the course of conduct pleaded at Part A, and not as the consequence of any single event. Read with paragraph 1.2 above, it marks the point at which the Appellant's general practitioner sought specialist psychiatric input while he remained on no antidepressant, no anxiolytic and no other psychotropic medication. No appointment with the psychiatrist was obtained on that referral.

*Particulars: paragraphs 76 to 77 of the notice to admit facts served 28 August 2026, admitted 8 September 2026.*

1.4 **Deterioration and first presentation.** The Appellant last worked a shift on 3 June 2024. On days in May 2024 and in the first week of June 2024 he drove to work, was unable to enter the building, and reported himself unfit from the car park. The date of injury recorded on the certificates is 18 June 2024. On 28 June 2024 (Dr Slawinski) the record shows "stress at work" and "upset by people not following rules", reason for visit anxiety. On 1 July 2024 (Dr Hawes) the record shows "work stress", "been there 5 years", that "they withhold pay at times, no overtime- not processed, manipulate his roster- so he works later than earlier", and "causing anxiety". **[Tab M1.]** The events those records name are the matters admitted on 8 September 2026 and pleaded at Part B.2 below. The records are relied upon as the contemporaneous record of what was reported, before any claim decision, dismissal or proceeding; not as a finding of fact as to mechanism.

1.5 **Certification.** The work capacity certificates of Dr Hawes dated 1 July, 11 August and 8 September 2024, and of Dr Ki Pang dated 7 August 2024, state the date of injury as 18 June 2024, that the Appellant was first seen for this injury on 1 July 2024, and certify no functional capacity continuously from 1 July to 6 October 2024. The referral to a psychiatrist is recorded on the certificate of 8 September 2024. Review Decision 69983 records at page 17 that the certificate of 1 July 2024 indicated "there was no pre-existing factor or condition", and that "This was maintained in all later work capacity certificates". **[Tab M2; Respondent's items 7 and 8.]** The medication box is unticked on each certificate.

1.6 **Diagnosis, 24 October 2024.** At the first consultation, on the referral, the treating psychiatrist told the Appellant, and confirmed in writing at 11:45 am that day, that he was "suffering from psychological injury of Major Depressive Disorder with anxiety state"; that fluoxetine was increased to two capsules "from today" and Seroquel 25 mg commenced at night, "to restore basic needs- sleep, eating and routine". The Appellant's email of 5:12 pm that day reads "I have finally been able to see a psychiatrist today". **[Tab M3; Respondent's item 9.]** Read with 1.5, it records the progression from the injury certified as anxiety and stress on 1 July 2024 to a depressive disorder by 24 October 2024.

1.7 **The report of 13 February 2025.** Diagnosis: Major Depressive Disorder with anxious distress (DSM-5 296.23). Severity, functional effect and treatment (fluoxetine increased to three capsules daily; quetiapine 25 mg at night). The treating clinician records the origin as "workplace stress stemming from issues with management and rostering"; that the issues "began approximately one

year ago when a new manager was appointed"; that pay was "withheld or delayed for up to five months at a time, leading to significant financial stress"; and that "premature exposure to the workplace is more likely result in significant deterioration". [Tab M4; Respondent's item 10.] The stressors so recorded correspond to matters admitted on 8 September 2026: management and rostering, and the night-shift line; the shorter break; and pay withheld or delayed from the 5 February 2024 fortnight, uncorrected at 13 May, "claims older than 3 months" on 28 May, a claim effective 30 March recorded "Part Completed" on 30 May, and the two February claims absent from the myHR report.

*Particulars: paragraphs 193, 196 to 197, 203, 210 to 212, 220, 258 to 260 of the notice to admit facts served 28 August 2026, admitted 8 September 2026.*

**1.8 The report's footer, and the author's position.** The report bears a footer reading "for the only reason of clinical information and not for medico-legal use". The author's emails of 5 and 8 September 2026 state of his records "You can use them according to the need to support your legal issues", and identify the report of 13 February 2025 as "the report that captures the relevant information you have requested" on the matters in issue. [Tab M5.] The report is not relied upon for attribution among the individual events pleaded at Part B.2, nor for any matter after 24 October 2024 as a cause of the injury.

**1.9 Current capacity.** The Employee Capability Checklist completed by Dr Day Hong Ma on 3 July 2026 records current capacity and restrictions and the continuing effect of the injury, including "symptom exacerbation on exposure to the identified workplace stressors". [Tab M6.] Relied upon for effect and capacity only, not for causation; it post-dates 1 July 2024.

**1.10 Outstanding, and the finding in the decision under appeal.** The clinical records of the treating psychiatrist from 24 October 2024 were offered by the practice on 5 September 2026 and have been requested; they are not yet received and will be served on receipt. On the medical evidence then before it, the Respondent's review of 24 October 2024 found that the Appellant "sustained a personal injury of a psychological nature" and stated: "Having regard to the medical evidence, I am satisfied your employment was a significant contributing factor to the psychological injury". The claim was rejected under section 32(5), not section 32(1). [Tabs M7 and M9.] The hearing is de novo and that finding does not bind the Commission; it is relied upon as an admitted document.

*Particulars: paragraphs 261 to 262 of the notice to admit facts served 28 August 2026, admitted 8 September 2026.*

## 2. Causative stressors (composite course, June 2023 – June 2024)

### STRESSOR 1 — THE CONDITIONS IN WHICH THE WORK WAS CARRIED ON

**(a) The duty to keep the contact information accurate.** A key responsibility of the position is to collate information and maintain the Omnivista database and SharePoint so that the information held within Switchboard Services is accurate and appropriate. [¶ 6]

A further key responsibility is to support hospital staff in the allocation, coordination and fault repair of all pager units, including maintaining the database and registers with accurate and current information. [¶ 7]

That duty is the duty by reference to which each of (b) to (h) below is pleaded.

**(b) The removal of the means of performing that duty, 18 July 2023, and how long it lasted.** On 18 July 2023 at 12:56 pm the Switchboard Telecommunications Coordinator wrote to the Appellant and the Switchboard team explaining that her role was a temporary project role focused on fixing the database. [¶ 39]

She stated: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database." [¶ 40]

She stated that she had removed the Contact & Number Changes book out of the room, preferring all changes to be sent to her email. [¶ 45]

The Respondent's own review decision records the same matters. [¶¶ 46 to 48]

The Respondent does not allege that access to the database was restored to the Appellant at any time before 18 June 2024. [¶ 55]

**The removal of access was stated to be for the duration of a temporary role.** The email of 18 July 2023 states in terms: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises." The removal of access was expressed to run with that work — "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database." The decision under appeal records the same thing: the role was "a project role, which was a temporary position that focused on fixing the database used by the switchboard". [¶¶ 39 to 40, 47]

**The role was still operating nine months later, and had been extended.** The email of 15 April 2024 states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours." [¶ 52]

On 13 May 2024 at 4:29 pm the Coordinator herself circulated the Switchboard after-hours on-call roster for the fortnight 13 to 26 May 2024, stating that she was on call after hours for Switchboard from that day. [¶¶ 111 to 112]

**The Respondent does not allege that the project described in the email of 18 July 2023 was completed, or that the temporary role described in it ceased, at any time before 18 June 2024.** The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, makes no reference to that role, to that project, to the database, or to database access. [¶ \_\_\_\_]

**The duration.** The period from 18 July 2023 to 18 June 2024 is eleven months, being 336 days. The matters pleaded at (e) to (h) below all fall within it. Throughout it the duty at (a) remained on the position and the means of performing it remained with others. [¶ 55]

**The Appellant does not allege that the role was converted into a permanent position, and makes no allegation about how any person came to hold it.** What is pleaded is the duration: an arrangement introduced as temporary, and a removal of access expressed to last only while the database was being fixed, subsisted for the whole of the period in which the matters at (g) and (h) occurred.

The duty at (a) remained on the position throughout that period.

**(c) The repair path, and its availability.** The Coordinator's stated working hours were "every Tuesday and second Monday, 8:00 - 16:00". [¶ 41]

A person wanting an entry updated was to "contact me directly, either via email or extension". [¶ 42]

If an entry was needed on a day she was not present, and was urgent, it was to be sent to the Switchboard Manager. [¶ 43]

A request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back". [¶ 44]

The Appellant pleads no characterisation of any person. The availability of those two persons is pleaded because it determined how long an incorrect entry remained uncorrected.

**(d) The criticality of the function, as admitted by the Respondent.** On 18 February 2026 the Respondent responded to an earlier notice to admit facts in this proceeding. [¶ 283]

It admitted that “Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety”. [¶ 289]

In admitting that paragraph it added “and says that there was a procedure in place for this to occur”, and it denied a further paragraph on the ground that there was already a procedure in place. [¶¶ 290 to 291]

The procedure in place from 18 July 2023 is the procedure pleaded at (c) above. Its operation between 2 and 20 May 2024 is pleaded at (g) and (h) below.

**(e) The further changes to process, April and May 2024.** On 15 April 2024 at 12:39 pm the Switchboard Manager wrote to Logan Switch, copied to the Director and the Switchboard staff, with the subject “Afterhours Oncall Process - Switchboard”. [¶ 49]

That email stated that the process during office hours remained the same and that staff were to contact her through switch, the office or her mobile, and that she and the Coordinator had added themselves to the after-hours on-call roster. [¶¶ 50, 52]

It stated: “This new process is effective from today.” [¶ 51]

She signed it as “A/Switchboard Manager”. [¶ 53]

The review decision records that on 19 April 2024 she emailed the team stating that due to errors being made with respect to data entry a new process was to be followed which included more checks to ensure accuracy of data entry. [¶ 54]

On 13 May 2024 at 4:29 pm the on-call roster for the following fortnight was circulated to the Switchboard team. [¶¶ 111 to 112]

From 14 May 2024 the process for notifying unavailability for a rostered shift was also directed through the same person, both emails identifying the Switchboard as a means of contacting her. [¶¶ 162 to 165]

The Respondent does not allege that the Appellant was informed before 14 May 2024 that any other means of notification was required. [¶ 166]

**(f) The obligation to consult, and the absence of any record of consultation. The instrument in operation.** The Queensland Public Health Sector Certified Agreement (No. 11) 2022 was certified by the Commission on 26 May 2023 under section 193 of the *Industrial Relations Act 2016* and had a nominal expiry date of 31 August 2025. Clause 1.13.3 records that the policies preserved by the Agreement apply to “Queensland Health including HHS employees”, and the Agreement prescribes classifications and rates of pay for Administration Officers including AO3. It was accordingly the certified agreement in operation at every time pleaded in this statement. The Queensland Public Health Sector Certified Agreement (No. 12) 2025 was not certified until 23 December 2025 and has no application to any matter pleaded here. [¶ ]

**Clause 3.2 — Commitment to Consultation.** Clause 3.2.2 records the parties’ commitment to involving employees and their union representatives in “the decision-making processes that may affect the workplace”, and that employees “will be encouraged to participate in the consultation processes by being allowed adequate time to understand, analyse and seek appropriate advice from their union and respond to such information”. [¶ ]

Clause 3.2.3 provides that “[t]he requirement of consultation is never to be treated perfunctorily or as a mere formality”. Clause 3.2.4 provides that consultation “involves more than a mere exchange of information” and that for consultation to be effective “the participants must be contributing to the decision making process not only in appearance, but in fact”. Clause 3.2.5 provides that the process “requires the exchange of timely information relevant to the issues at hand so that the parties have an actual and genuine opportunity to influence the outcome, before a final decision is made”. [¶ ]

**The Appellant does not contend that the employer was obliged to decide differently.** Clause 3.2.5 also provides that the consultation process “does not remove the rights of management to make the final decision in matters that may affect the workplace”. What is pleaded is not the content of the decision but the absence of the opportunity that clause 3.2.5 requires to precede it.

**Clause 1.7.4.** Where a policy or process introduced by the employer is inconsistent with the Agreement or less favourable, the industrial instrument prevails to the extent of the inconsistency. [¶ ]

**The Award — clause 11.** Clause 11.1(a) of the Award requires an employer who decides to introduce changes in organisation or structure likely to have significant effects on employees to notify the employees who may be affected. Clause 11.1(b) defines “significant effects” as including “the alteration of hours of work”. Clause 11.2(a) requires the employer to consult the employees affected about the introduction of the changes and their likely effects; clause 11.2(b) requires that consultation to occur “as soon as practicable after making the decision”; and clause 11.2(c) requires the employer to provide in writing “all relevant information about the changes”. [¶ ]

**The Award — clause 6.2.** Where facilitative provisions allow conditions of employment to be determined by agreement between the employer and the majority of employees affected, clause 6.2(c) provides that they “can only be implemented by agreement”, clause 6.2(d) that neither party should unreasonably withhold agreement, and clause 6.2(e) that agreement “is defined as obtaining consent of greater than 50% of employees directly affected”. [¶ ]

**Clause 4.1.4, in the alternative.** Clause 4.1.4 requires significant organisational change or restructuring that will impact on the workforce, including major alterations to current service delivery arrangements, to be subject to the employer establishing its benefits in a business case tabled for consultation; a business case is not required for minor change. The Appellant does not need to establish that the changes were significant in order to succeed on clause 3.2 or clause 11, and pleads clause 4.1.4 in the alternative only. He relies, as to characterisation, on the employer’s own description of its rostering proposal as a “business case for change”, pleaded at Stressor 3(b) below. [¶ 221]

**The clause referred to on the review.** The decision under appeal records that in his response of 9 August 2024 the Appellant referred to the employer not following principles in the Agreement “particularly section 1.9”. Clause 1.9 of the Agreement is headed *Posting of the Agreement*. The Appellant, who was self-represented and unwell, does not rely on clause 1.9 in this appeal. He relies on the clauses set out above, which he bears the onus of establishing and which are proved by the instruments themselves. [¶ ]

The change notified on 15 April 2024 was stated to be effective the day it was notified. [¶ 51]

The Respondent’s amended List of Documents records no document recording consultation with Switchboard operators before that change. [¶ 273]

The Respondent does not allege that agreement under clause 6.2 of the Award was obtained, or that a ballot of affected employees was conducted, before it. [¶¶ 180 to 181]

The employer conducted that process on other occasions. Its Consultation outcome document defines agreement as the consent of a majority of affected employees, and records that seventeen employees were invited to vote, seventeen votes were received, and the proposal was accepted. [¶¶ 167 to 170, 176 to 177]

On 20 May 2024 at 4:30 pm the Switchboard Manager wrote: “Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing.” [¶ 101]

**(g) What arrived at the console: the misdirected emergency calls, 2 to 9 May 2024.** A key responsibility of the position is to participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes; to maintain call queues to a minimum at all times; and to operate under pressure, particularly where high volume call traffic is concerned. [¶¶ 5, 8, 10]

On 3 May 2024 at 3:06 pm the MASPER Registrar wrote to the Switchboard Manager with the subject "Switchboard issues 2nd and 3rd May 2024", listing five occasions on 2 and 3 May. [¶¶ 56 to 57]

Of the occasion at 14:46 on 3 May the email records: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER". [¶ 58]

On 8 May at 5:28 pm she wrote again, listing four further occasions, recording of those on 8 May that a call was "incorrectly put through to MASPER" on each occasion. [¶¶ 59 to 61]

Those nine occasions fell while the arrangement notified on 15 April 2024 was in force. [¶ 68]

The first reply was sent on 9 May at 9:20 am, and asked the reporting clinician to confirm her business hours because they were "not provided on the rosters", noting that her dect phone was "currently switched off". [¶ 65]

That reply was sent five days, eighteen hours and fourteen minutes after the first email. [¶¶ 62 to 64]

At 10:15 am the same day the Switchboard Manager wrote to Logan Switch introducing a new process and referring to "many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams". [¶¶ 66 to 67]

The Respondent does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning those occasions at any time after 3 May 2024 and before 10:15 am on 9 May 2024. [¶ 69]

**(h) What arrived at the console: the Integrated Respiratory Service, 15 to 20 May 2024.** On 15 May 2024 at 11:47 am an Administration Officer of the Integrated Respiratory Service wrote to Logan Switch, marked of High importance: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area." [¶ 89]

The Respondent does not allege that any response was made to that email before 20 May 2024. [¶ 90]

On 20 May at 11:03 am she wrote again, marked of High importance: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues." [¶¶ 91 to 92]

The Respondent does not allege that any response was made to that email before 2:05 pm that day. [¶ 93]

At 2:05 pm, from the Logan Switch account and within the office hours stated to all Switchboard staff on 17 May 2024, the Appellant wrote identifying the cause as modifications made to the document "Outpatients Department - Clinic contact Details" on 22 February 2024, and recommending a modification and review of that document. [¶¶ 94 to 96]

That email was sent three hours and two minutes after the Service's second email, and five days, two hours and eighteen minutes after its first. [¶¶ 97 to 98]

The Respondent does not allege that the Appellant was rostered to work after 2:05 pm that day. [¶ 99]

The reply at 4:30 pm stated: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical." [¶¶ 100, 104]

It was sent two hours and twenty-five minutes after the Appellant's email, and two hours after the conclusion of the office hours stated to all Switchboard staff on 17 May 2024. [¶¶ 102 to 103]

The Respondent's amended List of Documents records no document created on 20 May 2024 recording that discussion, and no communication sent by either named person to the Service on that day; and the Respondent does not allege that the other named person communicated with the Service on that day. [¶¶ 105 to 108]

The Respondent does not allege that the contact-details document was amended on or before 20 May 2024, or that the Switchboard staff were notified of the modifications made to it on 22 February 2024. [¶¶ 109 to 110]

**(i) The office hours of the manager to whom the position reports.** The position reports to the Switchboard Manager, and the role description names that person as the contact for the position. [¶¶ 3 to 4]

On 23 August 2023 at 2:18 pm she wrote to Logan Switch with the subject "What's Chloe's Hours?": "I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning and finish at different times in the afternoon", and "My hours would range from starting between 6-9am and finishing 2-5pm." [¶¶ 70 to 72]

The Respondent does not allege that fixed office hours were stated to the Switchboard staff at any time between 23 August 2023 and 17 May 2024. [¶ 73]

On 15 May 2024 at 1:15 pm the Appellant wrote to the Manager and Logan Switch, copied to the Switchboard staff, the Director and LBH\_HR, asking that she share her office hours so the department could be aware of her regular schedule, noting inconsistency in arrival and departure times, and asking that "any directives and changes within the department is made in consultation with the team". [¶¶ 74 to 75]

At 6:23 pm the Director replied, copied to the Manager and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct", and asked him to retract it. [¶¶ 76 to 77]

At 7:09 pm the Appellant replied that "Requesting clarity on business hours is a reasonable" request. [¶ 78]

On 17 May 2024 at 9:30 am the Manager wrote to the whole department, headed "Switchboard Manager - On call and Hours", stating that her hours "can vary", that "I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30", that "I will not be in the office until around 11am on Monday 20.05.2024", and that "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week". [¶¶ 81 to 84, 113]

Those stated office hours concluded at 2:30 pm. [¶ 88]

On 21 May 2024 at 2:53 pm the Director replied that she would follow up on the issues raised, and asked "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?" [¶¶ 79 to 80]

On 18 June 2024 at 8:58 am the Manager wrote to Logan Switch: "I am taking today off, and hopefully will be back tomorrow", and "I am sorry I haven't been there for you all over the past week." [¶¶ 85 to 87]

**(j) The Communication Book, 6 June 2023.** A key responsibility of the position is to maintain discretion and exercise judgement where necessary to resolve problems within the scope of the role, in situations where precedence has not been set and procedures are not defined. [¶ 9]

At 9:57 am on 6 June 2023 the Switchboard Manager wrote to Logan Switch that the book “is not used to simply put your point across or make any indirect comments towards the team”. [¶¶ 148 to 149]

At 4:05 pm she wrote to the Director: “I was not aware of who put this entry in at the time but I took it out last week”, and that she felt it was being used as a “burn book” more than a professional tool. [¶¶ 145 to 147]

The Respondent’s pleading admits that pages were removed on or around 6 June 2023, and says the event was reported to the Director by email that day. [¶¶ 143 to 144]

On 18 February 2026 it admitted that a page was removed from the workplace communications book, and did not admit that the page contained the Appellant’s handwriting “because the respondent does not have a copy of the page”. [¶ 288]

It also admitted that in that email the Manager stated: “I did raise my voice and asked him to please stop talking over the top of me.” [¶ 292]

The Respondent does not identify the entry removed or its author, does not allege that the removed page has been located or that any copy exists, does not allege that any entry made by the Appellant remains in the book, and does not allege that the book ceased to be in its possession during his employment. [¶¶ 150 to 153]

The Respondent has admitted that it does not have a copy of the removed page. [¶ 288]

**(k) The matters raised in August and September 2023, and the response.** On 7 August 2023 at 12:21 pm the Appellant wrote: “Please give me some space and stop with any further communication as I have had enough of it.” [¶ 155]

At 1:43 pm the Manager replied, apologising for the rostered shift and confirming it was a rostering error, and asking “Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period”. [¶¶ 156 to 157]

At 3:13 pm the Director replied, and at 5:11 pm she wrote to the Manager attaching a document titled “Rostered shifts Cory S. past 8 months.xlsx”. [¶¶ 158 to 159]

On 8 August 2023 at 4:15 pm the Director wrote regarding an additional shift to replace the shift not worked due to a rostering error. [¶ 28]

On 29 August 2023 she sent HR Policy E12, and on 4 September 2023 the Appellant replied. [¶¶ 160 to 161]

On 31 August 2023 he provided a written application headed “Request to Increase Working Hours to Full Time Rotational Roster”, expressing willingness to take on additional night shifts. [¶¶ 30 to 31]

On 4 September 2023 he confirmed that he was able and willing to work any roster presented to him including the full 24-hour rotational schedule, that he had no issues with shift work, and attached a draft roster spreadsheet. [¶¶ 33 to 35]

On 27 September 2023 the Manager wrote with the subject “Approved - Permanent Full Time FTE”, stating she was happy for him to commence full-time hours from 16 October 2023. [¶¶ 36 to 38]

On 8 September 2023 the Director had written that she was glad things seemed to be improving, and he had earlier confirmed that he was able and willing to work. [¶¶ 26 to 27, 29, 32]

**(l) The special pandemic leave application, February 2024 — the sequence.** The review decision records that on 20 February 2024 the Appellant messaged the Switchboard Manager stating he had tested positive for COVID-19, and that she “requested that you send it to her so she could submit it in MyHR”. [¶ 136]

The Respondent pleads that she asked him to submit a Special Pandemic Leave request via myHR himself and attach a statutory declaration or photo evidence of his test. [¶ 132]

The myHR submissions report records the initiator of that Smart Leave Request as the Appellant. [¶¶ 140 to 141]

The Respondent does not allege that any other Switchboard employee was required to submit such a request personally through myHR in February 2024. [¶ 142]

The leave request history for Process Reference 15480560 records the Appellant creating a draft at 11:24:48 on 20 February 2024 and submitting the request at 11:41:27 that morning. [¶¶ 114 to 115]

It records the request being declined at 12:23:43 on 21 February 2024; submitted again at 06:07:32 on 28 February; declined again at 09:06:07 on 29 February; submitted a third time at 11:07:28 that morning; and approved at 11:21:03. [¶¶ 116 to 120]

It records the Appellant as having submitted the request on three occasions and the Manager as having declined it on two, and records the Director as approving it at 16:05:08 on 1 March 2024. [¶¶ 121 to 123]

The approval followed the third submission by thirteen minutes and thirty-five seconds; the interval from draft to final approval was ten days, four hours, forty minutes and twenty seconds. [¶¶ 124 to 125]

Two reasons for the declines appear on the record and they are not the same. The review decision records that on 21 February the Manager messaged that she had to decline because the minimum period for COVID leave was five days for a positive staff member, that she noted the statutory declaration provided was sufficient evidence, and that she asked him to resubmit his leave days. [¶¶ 137 to 138]

It records the Appellant messaging that he was confused about why his amended request was declined, and that he had done everything as required. [¶ 139]

The Respondent pleads that she declined the application because on her assessment the required statutory declaration was not attached; that “a review indicates that in fact, the attachments were present on the appellant’s submission”; and that this was human error on the background of high work demands. [¶¶ 133 to 135]

**(m) The authority to decide that application.** The power to approve paid special pandemic leave was sub-delegated by an Instrument of Human Resource Sub-Delegation signed by the Health Service Chief Executive on 23 November 2022 and effective from 5 December 2022. [¶ 127]

That Instrument states: “This Instrument does not permit the further sub-delegation of the powers outlined in (a) above.” [¶ 128]

In the leave request history the Switchboard Manager is identified as “Reviewer” and the Director as “Manager”. [¶ 126]

The Respondent does not allege that either was a Band 9 delegate at any relevant time in February or March 2024, and does not identify the person who exercised the power sub-delegated by that Instrument in respect of Process Reference 15480560. [¶¶ 129 to 131]

**(n) The complaint of 13 May 2024.** On 13 May 2024 the Appellant lodged a complaint with the Metro South Health Ethical Standards Unit, on that Unit’s own complaint form. [¶ \_\_\_\_]

The complaint concerned matters falling within the circumstances pleaded at (a) to (i) above, including the effect on clinical staff and on the time taken for calls to reach them. **Its content is not otherwise set out in this statement.** [¶ \_\_\_\_]

On 15 May 2024 at 3:35 pm he sent that complaint by email to the Ethical Standards Unit, to CO\_Complaints and to LBH\_HR. [¶ \_\_\_\_]

At 3:41 pm that afternoon, six minutes later, an officer of Human Resources forwarded that material to three further officers of Human Resources. [¶ \_\_\_\_]

On 16 May 2024 at 11:43 am an Acting Senior Consultant, Human Resources sent the complaint form to the Director and to a further officer, copied to four other officers, stating: "Cory sent his complaint directly to the Ethical Standards Unit... Once ESU have received all of the information and finalised their assessment we will reach out to discuss next steps". [¶ \_\_\_\_]

The correspondence of 15 and 16 May 2024 referred to above was disclosed by the Respondent to the Appellant on 11 June 2026, and is relied upon as the Respondent's own disclosed material. [¶ \_\_\_\_]

**What the Ethical Standards Unit did, as recorded in the decision under appeal.** The decision records that on 15 May 2024 the Director of the Ethical Standards Unit emailed the Appellant to acknowledge receipt of his complaint form, and "noted that since you had further information to provide, they would wait for further details from you to progress the assessment". [¶ \_\_\_\_]

It records that a Principal Investigator emailed him on 20 May 2024 to follow up further information, advising that "to progress the assessment of the broad concerns raised by you, they required particulars for each matter". [¶ \_\_\_\_]

**The referral to Human Resources, 27 May 2024.** It records that on 27 May 2024 the Principal Investigator emailed him stating that "in the absence of any particulars relevant to your allegations, they finalised an assessment of the matter and determined it did not raise reasonable suspicion of corrupt conduct and **would refer your concerns and complaints to Human Resources**", and that they invited him to provide further information if he wished to in the future. [¶ \_\_\_\_]

The assessment was accordingly finalised fourteen days after the complaint form was lodged on 13 May 2024, and seven days after particulars were first requested on 20 May 2024. [¶ \_\_\_\_]

**Where the referral went.** Human Resources, to which the Appellant's concerns and complaints were referred on 27 May 2024, is the same function that had received his email of 15 May 2024 at 3:35 pm, had forwarded that material to three further officers of Human Resources six minutes later, and had sent his complaint form to the Director at 11:43 am on 16 May 2024, as pleaded above. [¶ \_\_\_\_]

**Who convened the meeting about the outcome.** The decision records that in an undated email the Director scheduled a meeting with the Appellant at 10:00 am on 12 July 2024 "to discuss the outcome of your complaint", and that by email dated 12 July 2024 she rescheduled it to 16 July 2024. The Director is the officer to whom the complaint form had been sent by Human Resources on 16 May 2024, and the officer who had sent the email of 15 May 2024 at 6:23 pm pleaded at (e) above. [¶ \_\_\_\_]

**The employer's position, and the Appellant's capacity at that time.** The decision records the employer's response of 15 August 2024 as stating that "due to your refusal to participate in the process, they were unable to take any action to resolve your concerns". The work capacity certificates pleaded at Part B.1, paragraph 1.5 above record the Appellant as having **no functional capacity continuously from 1 July to 6 October 2024**. Both meeting dates — 12 and 16 July 2024 — fall within that period. [¶ \_\_\_\_]

**The finding made on this factor.** The decision finds this factor "is able to be substantiated to the extent that you lodged a complaint, and some action was taken by management to review it, but not to the extent that there was no response to it", and its Conclusion finds that the Appellant's injury arose out of employment to the extent that it arose out of factors 2, 3 and 4. [¶ 262]

**The second determination, 24 December 2024.** On 24 December 2024 the Ethical Standards Unit determined that the Appellant had made a public interest disclosure, reference 24-ESU-1130. [¶ \_\_\_\_]

On 18 February 2026, in its response to the Appellant's earlier notice to admit facts, the Respondent admitted that on 24 December 2024 the Ethical Standards Unit determined that the Appellant's complaint constituted a Public Interest Disclosure. That admission is paragraph 20 of the response of that date. [¶ \_\_\_\_]

**The second referral to Human Resources.** By that same determination the Unit identified further administrative issues and referred them, for remediation, to Human Resources at Logan and Beaudesert. That is the second occasion on which the matters the Appellant raised on 13 May 2024 were referred to Human Resources, the first being the referral of 27 May 2024 pleaded above. [¶ \_\_\_\_]

**The Appellant does not plead that his allegations were substantiated.** What was determined on 24 December 2024 is that he had made a public interest disclosure. The content of that disclosure is not set out in this statement.

No document recording what was done by Human Resources in consequence of either referral — that of 27 May 2024 or that of 24 December 2024 — has been identified or disclosed to the Appellant in the Respondent's disclosed material presently before the Commission. [¶ \_\_\_\_]

The matters pleaded at Stressor 1(p) above are repeated: the Respondent's material records that the complaints received at the console did not result in any consequential change to operating procedures, that fatigue risk management records for the Switchboard do not exist, and that fatigue risk management assessment at the Switchboard was implemented only after 30 June 2024. [¶¶ 263 to 265, 269 to 271]

**The sequence, stated neutrally.** The conditions pleaded at (a) to (i) above arose at the console. They were raised on 13 May 2024 with the Ethical Standards Unit. **They were referred to Human Resources twice.** On 27 May 2024, fourteen days after the complaint was lodged, the Unit finalised its assessment and referred the concerns and complaints to Human Resources — the function that had itself distributed the complaint on 15 and 16 May 2024. The meeting to discuss that outcome was convened by the Director to whom that function had sent the complaint form, on dates on which the Appellant is certified as having had no functional capacity. Seven months later, on 24 December 2024, the same Unit determined that he had made a public interest disclosure, identified further administrative issues, and referred them to Human Resources again. No document recording what Human Resources did with either referral has been disclosed, and on the Respondent's own material the conditions pleaded at (a) to (i) were unchanged. **The Appellant alleges no impropriety, and no motive, in that sequence.** It is pleaded because it is the course the conditions took after he raised them, and because the decision under appeal has found that his injury arose in part out of this factor. The Appellant's contemporaneous medical record for the same week, including the renewed referral to a psychiatrist dated 16 May 2024, is pleaded at Part B.1, paragraph 1.3 above.

**No connection between the complaint, its distribution, and any other conduct pleaded in this statement is alleged or relied upon. The matters in this sub-paragraph are pleaded as part of the sequence of matters the Appellant raised and the responses he received, and for no other purpose.**

**(o) Workplace representation.** The Respondent has admitted that the Union Encouragement Policy QH-POL-248 requires managers to take a "positive, supportive role" in relation to workplace delegates, and admitted that the Appellant sent a text to the Manager at 5.03 pm that he was "just putting his hand up", saying that this was not a formal notification. [¶¶ 293 to 294]

On 3 November 2025 an Organiser of Together Queensland wrote to the Appellant and two colleagues congratulating them, and the Appellant was endorsed as a workplace delegate on or about that date. [¶¶ 178 to 179]

**No allegation of deliberate suppression is made.**

**(p) What the employer states about its own systems and records.** A key responsibility of the position is to follow defined service quality standards and occupational health and safety policies and procedures relating to the work being undertaken, to ensure high quality, safe services and workplaces. [¶ 12]

By letter of 5 June 2026, reference K-LM26/729, signed by the Chief Executive and addressed to the Commission, Metro South Health stated that the requested fatigue risk management documents “do not exist”, that mandatory Fatigue Risk Management System training “only applies to health practitioners and clinical assistants” and that Switchboard staff are non-clinical. [¶¶ 263, 265] It stated that “The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024”. [¶ 264]

It stated that “there have been no ‘consequential’ changes to operating procedures over the period requested”. [¶ 266]

It stated that “All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant.” [¶ 267]

It stated that “a spreadsheet of recorded MET calls is available for the period 17-18 March 2024”. [¶ 268]

The Respondent does not allege that any fatigue risk assessment was conducted, that any fatigue risk management training was provided, that fatigue risk management assessment was implemented at the Switchboard, or that any change was made to the operating procedures of the Switchboard as a consequence of any employee complaint, at any time before 30 June 2024. [¶¶ 269 to 272]

**(q) Matters pleaded as context only.** The Respondent does not allege that the Appellant was subject to any disciplinary process, or that his work performance was the subject of any formal performance management process, before 18 June 2024, nor does it describe any communication with him before that date as a warning. [¶¶ 300 to 302]

The matters at (j), (k), (n) and (o) above, and at paragraph 3 below, are pleaded as part of the sequence of matters the Appellant raised and the responses he received. They are not relied upon as independent causative circumstances, and no retaliatory or reprisal connection between any of them and any other conduct is alleged. The causative circumstances relied upon in Stressor 1 are those at (a) to (i) and (p).

**The matters at (l) and (m) are in a different position.** They are set out in this stressor because that is where the sequence and the question of authority belong, but they are relied upon as causative in **Stressor 2**, at sub-paragraph (g) of that stressor, as part of the means by which a paid entitlement had to be obtained. They are not relied upon as causative in this stressor, and are not counted twice.

## STRESSOR 2 — ENTITLEMENTS, AND THE MEANS OF OBTAINING THEM

**(a) What is pleaded in this stressor, and what is not. This stressor is not a claim that money is outstanding.** The Appellant does not plead that any amount remains unpaid, and he does not ask the Commission to determine any amount. He accepts that the Respondent pleads that any discrepancies were remedied and that there are no outstanding underpayments, and that the decision under appeal records that the pay issues were ultimately resolved. [¶¶ 207 to 208]

**What is pleaded is the means by which a correct payment had to be obtained.** The entitlement accrued automatically under the Award and the certified agreement. The means of correcting the record when it did not — the Attendance Variation and Allowance Claim, the validation of claims older than three months, the myHR payroll enquiry — were held by others. That is the same mechanism as is pleaded at Stressor 1: a responsibility that rested on the Appellant, and a means of discharging it that did not.

**The decision under appeal identifies the complaint in those terms.** It records: “Throughout your submissions you have expressed your dissatisfaction with the process of the employer in reviewing your payments and highlighted it was unreasonable for you to be required to fight for your entitlements.” [¶ \_\_\_\_]

The position is a continuous shift working role over the full 24-hour period, seven days a week, and under mandatory requirements the occupant must be able to work a roster which covers multiple shifts over a 24/7 period, so that entitlements arising from public holidays, weekend and night work accrued in the ordinary course of the position. [¶¶ 2, 13]

**(b) Public holidays on which the Appellant was not required to work.** The review decision records that section 23 of the Award provides that where an employee in receipt of the additional week’s leave prescribed by clause 19.2(a) is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, that employee is to be paid an additional day’s wage or granted a day’s holiday in lieu. [¶ 241]

As at 1 May 2024 payroll was “still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee”. [¶ 255]

The Manager confirmed “that since your commencement of full-time employment, all payments for public holidays not required had been processed”. [¶ 256]

**The rostering rule that governs public holidays.** Clause 9.16.1 of the Queensland Public Health Sector Certified Agreement (No. 11) 2022 provides that accumulated days off “must not coincide with a public holiday or weekend (Saturday or Sunday) unless requested by the employee and agreed to by the employer”, and that another day determined by mutual agreement is to be taken in lieu, within the same four weekly work cycle where possible. [¶ \_\_\_\_]

The Respondent does not allege that the Appellant requested that any accumulated day off coincide with a public holiday, or that any such request was agreed. [¶ \_\_\_\_]

**(c) The correction sought, and where each direction sent it.** The Respondent’s disclosure contains an email thread with the subject “Corey Shepherd 388372 Pay issues”, the first message being from PayrollMetroSouth on 3 May 2024 to the Manager, copying the Appellant, bearing the signature block of a Client Service Officer of the Metro South Payroll Team. [¶¶ 182 to 184]

That message identifies four fortnights requiring correction and states: “Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his contracted hours are correct.” [¶¶ 185 to 190]

On 10 May 2024 at 2:21 pm the Appellant wrote to PayrollMetroSouth and the Manager. [¶ 191]

On 13 May 2024 at 8:21 am Payroll replied to the Appellant: “I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR”. [¶¶ 192 to 193]

On 21 May 2024 at 12:33 pm the Manager wrote that she was “still I am waiting payroll confirmation”. [¶¶ 194 to 195]

On 28 May 2024 at 8:36 am she wrote: “Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval.” [¶¶ 196 to 197]

**(d) Who could submit the correction.** The myHR submissions report records seven submissions for the Appellant in the period 1 February to 31 May 2024, of which five were Attendance Variation and Allowance Claims. [¶¶ 198 to 199]

It records the initiator of each of those five as the Manager, and the initiator of no such claim in that period as the Appellant. [¶¶ 200 to 201]

**(e) The state of the record, and the Respondent's pleaded position.** The report records a claim with process number 16328886 submitted on 15 May 2024 and completed the next day. [¶ 202]

It records a claim with process number 16450619 submitted on 28 May 2024, with an effective date of 30 March 2024 and a processing date of 30 May 2024, with a status of "Part Completed", and records the status of every other such claim in the period as "Completed". [¶¶ 203 to 204]

It records the process numbers and submission dates in the period, and in it process numbers increase as submission dates increase. [¶¶ 205 to 206]

The Respondent pleads that "any discrepancies or errors were remedied in a timely manner" and that "there are no outstanding underpayments for the appellant", and that the Manager submitted the AVAC on 28 May 2024. [¶¶ 207 to 209]

Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in the myHR submissions report. [¶ 210]

On 18 February 2026 the Respondent admitted the Payroll instruction of 3 May 2024, the fact that the Manager submitted the AVAC on 28 May 2024, and the email of 21 May 2024 stating that she was waiting for payroll confirmation. [¶¶ 296 to 298]

**(f) Rostering practices raised with Human Resources.** On 20 May 2024 at 4:07 pm the Director wrote to LBH\_HR: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great." [¶ 222]

That email attached the document "qh-gdl-401-3.3", the Queensland Health Fatigue Risk Management Systems Implementation Guideline. [¶ 223]

**(g) The special pandemic leave application as a payment matter. The decision under appeal deals with this application under the pay factor.** The sequence of 20 February to 1 March 2024 is set out in full at Stressor 1(l) and Stressor 1(m) above and is repeated here rather than restated. It is repeated in this stressor because paid special pandemic leave is a paid entitlement, and because the decision under appeal deals with the whole of that sequence within the factor it describes as the withholding of pay. [¶ ]

**The same mechanism appears in it.** The entitlement accrued on the Appellant testing positive. The means of obtaining it was a request in myHR which, on the Respondent's own pleaded case, he was asked to submit himself, and which the Manager and the Director alone could decline or approve. He submitted it three times; it was declined twice; the interval from draft to final approval was ten days, four hours, forty minutes and twenty seconds. [¶¶ 124 to 125, 132, 140 to 141]

**The reason given did not hold.** The Respondent pleads that the application was declined because on the Manager's assessment the required statutory declaration was not attached, and that "a review indicates that in fact, the attachments were present on the appellant's submission". [¶¶ 133 to 134]

The Appellant does not plead that the leave was ultimately unpaid. He pleads the means by which it had to be obtained, and the concession as to the reason on which it was twice refused.

**(h) The finding under appeal on this factor, and what is challenged in it.** The decision under appeal finds that the Appellant's dissatisfaction was with the process of reviewing his payments and with being "required to fight for" his entitlements; that "the extent of pay issues experienced by you amounted to blemished management action"; that the pay issues "ultimately were all resolved"; and that "while the occurrence of the issues was a blemish, the resolution of them amounted to reasonable management action taken in a reasonable manner". [¶ ]

**What is challenged is the step from the second finding to the third.** The Appellant accepts the finding that the payments were ultimately made. He contends that the question posed by section 32(5)(a) is whether the management action from which the injury arose was taken in a reasonable way, and that the action from which this part of the injury arose is the process of obtaining the entitlements, not the arrival of the money at the end of it. A process is not shown to have been reasonable by the fact that it eventually produced the right result.

**No allegation of purpose is made.** The Appellant does not allege that any payment was withheld deliberately, or for any improper reason, and he does not rely on any such allegation. Any statement to the contrary recorded in the decision under appeal is not pleaded or relied upon in this appeal.

### STRESSOR 3 — THE ROSTER AND FATIGUE

**(a) The rostering history, and the Appellant's proposals.** On 7 August 2023 the Manager acknowledged a rostering error and offered to roster the Appellant off the following day "to give you the required rest period". [¶¶ 156 to 157]

On 18 February 2026 the Respondent admitted that the Director stated in an email dated 7 August 2023 that there had been a rostering error that was accidentally made. [¶ 287]

The Director requested a document recording his rostered shifts over the preceding eight months. [¶ 159]

The Appellant applied in writing to increase his hours to a full-time rotational roster, confirmed he was able and willing to work any roster presented to him, expressed willingness to take additional night shifts, and provided a draft roster spreadsheet. [¶¶ 30 to 31, 33, 35]

On 8 August 2023 the Director wrote regarding an additional shift to replace the shift not worked due to a rostering error. [¶ 28]

**(b) The rostering errors acknowledged, and the decision withheld.** On 26 April 2024 at 1:52 pm the Director wrote with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant had raised a roster line ending with night shifts followed by three days off and then returning to night shifts, and stating that the Manager "was working to fix this error and would get in touch with you about what alternative shifts she could offer". [¶¶ 211 to 212]

The Respondent does not allege that she got in touch with him about alternative shifts following that meeting. [¶ 213]

On 1 May 2024 at 1:18 pm the Appellant referred to section 4, clause 10.4.1 of the Operations Manual, which "includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act", and stated: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback". [¶¶ 214 to 215]

The Respondent does not allege that the toolkit was reviewed or that any feedback was provided before 18 June 2024. [¶ 216]

On 8 May 2024 at 9:08 am the Director replied that she was following up with HR for further advice and would get back to him as soon as possible. [¶ 217]

On 10 May 2024 at 2:08 pm she wrote to Human Resources forwarding his email, stating: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue." [¶ 218]

She stated that she and the Manager had run through the Roster Risk Assessment Matrix and “we say at best there would be a rating of 11 which is moderate”. [¶ 219]

She stated: “I acknowledge there has been a few rostering errors made by Chloe with regards to Cory’s line in past rosters”. [¶ 220]

She stated: “Cory’s roster will not be considered, however Cory is not yet aware of this as we cannot advise what is the roster we are planning on going with before we send out the implementation plan for this business case for change”. [¶ 221]

Eleven days later, on 21 May 2024, she asked him which particular changes or directives had concerned him. [¶ 80]

**(c) The Respondent’s pleaded position on the roster.** On 18 February 2026 the Respondent denied paragraphs of the Appellant’s earlier notice on the stated grounds “because the comparator used does not represent a true comparator in the circumstances and because the roster was equitable”. [¶ 299]

The Consultation Paper of November 2024 states that the proposed roster “is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff”. [¶ 171]

It states that the proposed roster includes “Redistribution of nights for greater equity based on FTE” and a “Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties”. [¶¶ 172 to 173]

It states that it includes an additional eight-hour Saturday shift to assist with call volume and the extension of a five-hour weekday shift to eight hours. [¶¶ 174 to 175]

**(d) The shifts of 17 and 18 March 2024.** The Appellant was rostered to finish at 23:00 on 17 March 2024 and to commence at 06:00 on 18 March 2024, a break of seven hours. [¶ 284]

The shift commencing on 18 March fell on a Monday, the first shift of the working week. [¶ 227]

The Respondent does not allege that those consecutive shifts arose from a staff-initiated shift swap. [¶ 234]

The review decision records the Appellant’s submission that the 8-hour agreement “was no longer fit for purpose” since his transition, and the surrounding matters as to that agreement. [¶¶ 17 to 25]

**(e) The rest actually available between those shifts.** The seven-hour figure is the interval between the rostered finish and the rostered commencement. It is not the rest that was available.

The review decision records the Appellant’s response of 9 August 2024 as stating that the break “did not include travel time”, and: “If you factored in travel time, your break between shifts would have been less than 5 hours.” [¶ 251]

The shift of 17 March 2024 was a late shift, concluding at 23:00. [¶ 284]

**A late shift does not shorten the day that precedes it.** The Appellant had been awake throughout that day before commencing it, and the period of wakefulness is accordingly measured from waking that morning and not from the commencement of the shift. [¶ ]

The Appellant will give evidence of where he lived, of the distance between his residence and Logan Hospital, and of his travel time each way. [¶ ]

**Wakefulness before the finish.** He will give evidence that the period from waking on the morning of 17 March 2024 to the conclusion of that shift at 23:00 was **approximately sixteen hours**, of which the shift itself was the latter part. [¶ ]

**Travel.** He will give evidence that the two shifts and the journeys to and from them required **approximately four hours of travel in total**, of which approximately half fell within the seven-hour interval between the two shifts — the journey home after 23:00 on 17 March and the journey back before 06:00 on 18 March. [¶ ]

**Sleep.** He will give evidence that within that interval, after travelling home and before travelling back, he obtained **approximately four hours of sleep**. [¶ ]

**The interval, accounted for.** The seven hours between the rostered finish and the rostered commencement therefore comprised the journey home, approximately four hours of sleep, and the journey back. That accords with the Appellant’s contemporaneous submission of 9 August 2024, recorded in the review decision, that with travel factored in the break was less than five hours. [¶ 251]

**The shift then worked.** He commenced the first shift of the working week at 06:00 on 18 March 2024, a Monday. [¶¶ 227, 284]

He will give evidence that he worked that shift through to 14:00, a further eight hours, and of the emergency workload carried during it, which is recorded in the register at (h) below. [¶ ]

**The position in summary.** Approximately sixteen hours of wakefulness to the finish at 23:00; approximately four hours of travel across the two shifts; approximately four hours of sleep within a seven-hour rostered interval; and then an eight-hour shift beginning at 06:00 on which the Appellant was responsible for receiving and distributing emergency response notifications strictly adhering to protocols and timeframes. [¶ 8]

The Award and the employer’s own fatigue policy are directed to the rest opportunity between shifts. The emergency duties pleaded at Stressor 1(g) and recorded at (h) below were performed on the shift of 18 March 2024 in that condition.

**(f) The standard: the Award, the certified agreement, and what the Respondent admits. Publication of the roster.** Clause 15.2(b) of the Award requires a roster setting out the employee’s days of duty and starting and finishing times to be displayed in a convenient place or made available electronically “at least one calendar week in advance of the roster cycle”. Clause 9.13.1 of the Agreement requires that the roster “shall be published at least 14 days in advance of each roster cycle”. By clause 1.7.2 of the Agreement, where there is any inconsistency between the Agreement and the Award the terms of the Agreement apply to the extent of the inconsistency. The operative standard was therefore fourteen days. [¶ ]

**Consecutive shifts.** Clause 15.2(c) of the Award provides that “[a] shift worker shall not perform more than two consecutive shifts (e.g. day shift/afternoon shift; afternoon shift/night shift)”. [¶ ]

**Changes within a roster.** Clause 15.2(d) of the Award provides that changes within a roster “shall be by agreement between the employer and the employee concerned but, failing agreement, 24 hours’ notice of any change in the roster must be given by the employer or double time is to be paid for the employee’s next shift”. [¶ ]

**Introduction of shift work and roster variations.** Clause 15.2(a) of the Award provides that shift work “shall be worked in accordance with a roster mutually agreed between the employer and the union, in consultation with the employees directly affected”, and that any discussions concerning the introduction of shift work or roster variations “shall be conducted in accordance with the provisions of clause 6.2 of this Award” — the facilitative-provisions procedure pleaded at Stressor 1(f) above. [¶ ]

**Roster concerns and fatigue.** Clause 9.14.2 of the Agreement records that a request for a roster change is usually made “to address work life balance or fatigue issues”. Clause 9.14.3 provides that “[t]he employer is committed to working with its employees and their union/s to address any rostering practices or concerns”. Clause 9.14.4 provides that the employer “will genuinely engage with employees and their union representatives through consultation on addressing the concerns and the design of any proposed new roster”. [¶ ]

**Fatigue as an agreed hazard.** Clause 7.1.5 of the Agreement records that, without limiting the issues which may be included, the parties agree to address the hazards and issues of “fatigue risk management” (clause 7.1.5(b)) and “guidelines for work arrangements (including hours of work)” (clause 7.1.5(c)). Clause 7.2.1 records the parties’ commitment to support psychosocial workplace audits and risk assessments of workplaces. [¶ ]

**The rest standard.** The review decision records that the employer’s own response included an extract of the Award stating that employees must be provided with a break of not less than ten hours between the termination of one shift and the commencement of another, and that eight hours applied instead of ten only in specific circumstances. [¶ 257]

On 18 February 2026 the Respondent admitted that “The Employer’s ‘Fatigue Risk Management Policy’ and the relevant Award require a minimum break of 10 hours between shifts, or 8 hours by written agreement”. [¶ 285]

It denied a further paragraph of that notice on the ground that in June 2020 the Appellant signed an agreement allowing an 8-hour break between shifts. [¶ 286]

**(g) The agreement of 17 June 2020, and its scope.** By email of 7 July 2026 a Senior Consultant, Human Resources wrote that the rostering “currently provides more than” the required break, and acknowledged the 8-hour agreement signed on 17 June 2020 “which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred”. [¶¶ 224 to 225]

The Respondent pleads that the shift was separated by only a 7-hour break, that this was a result of human error and not intentional or repeated, that in June 2020 the Appellant signed an agreement allowing an 8-hour break, and that “the appellant could refuse shifts at anytime”. [¶¶ 226, 232 to 233]

The role description states, under mandatory requirements, that the position is a continuous shift working role and that the occupant must be able to work a roster which covers multiple shifts over a 24/7 period. [¶ 13]

**(h) The emergency workload carried on those shifts.** Metro South Health has stated in writing that “a spreadsheet of recorded MET calls is available for the period 17-18 March 2024”. [¶ 268]

The emergency workload carried on those shifts is recorded in the employer’s Emergency Code Register. For 17 March 2024 the register records eight entries, including a MET call to Ward 2H Bed 7 at 19:16, a Code Blue to the same bed at 19:20 — four minutes later — and a further MET call to Ward 2Q Bed 5 at 21:16, each in the final hours of the shift before the 23:00 finish. [¶ ]

For 18 March 2024 it records a Code Grey at the QAS triage airlock at 8:48, MET calls to Ward 6A Bed 8 at 9:20 and Ward 3DR Bed 14 at 11:31, a cancelled MET call to the same bed one minute later at 11:32, a neonatal MET call to Theatre 2 at 11:35 and a neonatal MET call to Birth Suites 5 at 13:09. [¶ ]

Six of the entries for that day bear times between 6:00 and 14:00, and so fall within the shift commenced at 06:00 after the rest pleaded at (e) above. [¶ ]

For 19 March 2024 it records a MET call to Ward 2I Bed 20 at 11:34 with the notation that it was called via switchboard. [¶ ]

The register is produced at Tab 31 of Annexure A to the notice to admit facts served 28 August 2026. It will be proved by the register and any other admissible evidence.

**(i) The leave of 19 March 2024.** The Leave Takings Report produced by Metro South Health in respect of 19 March 2024 records the Leave Category as “Sick”, the Leave Type as “Sick Leave”, the Time Code as “SCK”, the Leave Taken as 7.60 hours and the Leave Status as approved. [¶ 235]

The Respondent pleads that the Appellant took leave on 19 March 2024 but says this was paid leave, and that pursuant to clause 18.10 of the Award he is not entitled to fatigue leave because he was not performing overtime. [¶¶ 236 to 237]

**(j) The enquiry of 8 April 2024, the delay, and the refusal of 1 May 2024.** The review decision records: “You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024”, noting the Award requirement as to a minimum ten-hour break. [¶¶ 242 to 243]

It records that she replied on 9 April 2024 and “added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this”, and that she “proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you”. [¶¶ 244 to 245]

It records that on 24 April 2024 the Appellant emailed expressing dissatisfaction that it had been more than two weeks without any response or overtime payment. [¶ 246]

The Respondent does not allege that any response was made to the fatigue enquiry between 9 April and 1 May 2024, an interval of 23 days. [¶¶ 249 to 250]

It records that she responded on 1 May 2024 stating that after a consultation with payroll and Human Resources the request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement, and noting that he was able to terminate that agreement going forward. [¶¶ 247 to 248]

It records that payroll was, as at 1 May 2024, still reviewing his entitlements; that the employer did not mention his shift on 18 March 2024; and that there was uncertainty between him and the employer regarding whether the 8-hour agreement continued to apply. [¶¶ 252 to 254]

**(k) The employer’s own fatigue policy.** The review decision records that the policy regarding fatigue leave following weekends and rostered days off is dated June 2020. [¶ 239]

It records that “The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not rostering on call an officer who is rostered for the first shift on the following day.” [¶ 240]

**(l) The absence of fatigue risk management at the Switchboard.** The matters pleaded at Stressor 1(p) above are repeated: the fatigue risk management records do not exist, the mandatory training applies only to health practitioners and clinical assistants, and fatigue risk management assessment at the Switchboard was implemented only after 30 June 2024. [¶¶ 263 to 265, 269 to 271]

**(m) The findings in the decision under appeal.** The review decision states: “The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours.” [¶ 258]

It states that even if the Appellant was allowed to leave early on 17 March 2024 as suggested by the employer, he left a maximum of thirty minutes early, which meant he still did not receive a minimum 8-hour break. [¶ 259]

It states: “Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement.” [¶ 260]

It states, under the heading “Conclusion”, that the Appellant “sustained a personal injury of a psychological nature”. [¶ 261]

It states that his injury "arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor". [¶ 262]

### 3. Subsequent conduct, and the contemporaneous record

**3.1 Conduct after the injury.** Meetings were scheduled while the Appellant held current medical certificates. His employment was ended under abandonment provisions in October 2024 while those certificates were current, and he was reinstated to his employment with an effective date of 20 September 2024, the reinstatement taking effect despite any payroll documentation. These matters are pleaded as context only, in accordance with Stressor 1(q) above.

**3.2 What the Appellant provided to WorkCover Queensland, and when.** The Respondent's amended List of Documents of 14 August 2026 records that the Appellant provided to WorkCover Queensland, at item 12, an email of 12 July 2024 with an attachment described as "Event overview - undated"; at item 14, an email of 18 July 2024 with an attachment described as "Witness statement - Carolyn Jeffrey"; at item 25, an email of 29 August 2024 described as regarding the after hours on call change, with an attachment described as "Email: After hours on call process"; at item 26, an email of 30 August 2024 described as regarding failure to consult, with an attachment described as "Email: Task change switchboard - 19/04/2024"; and at item 27, an email of 30 August 2024 described as regarding failure to consult, with an attachment described as "Email: MASPER process - 09/05/2024". It further records, at item 16, an email from Ms Carolyn Jeffrey to WorkCover Queensland of 1 August 2024 described as a follow up statement. The documents at items 25, 26 and 27 are the three directives pleaded at Stressor 1(e) and Stressor 1(g) above. They were provided by the Appellant to WorkCover Queensland in August 2024, before any decision on his claim and more than two years before this pleading.

**3.3 The particulars bundle of 11 August 2026.** The Respondent's amended statement of facts and contentions states at paragraph 11 that it does not admit the allegations in Stressor 1(a) of the Appellant's statement "because there are no particulars or details to respond to". On 11 August 2026 the Appellant served a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of that stressor and enclosing the documents recording it.

*Particulars: paragraphs 274 to 282 of the notice to admit facts served 28 August 2026, admitted 8 September 2026.*

### 4. The intervals

The following intervals are computed from dates and times admitted by the Respondent. They are matters of arithmetic and do not depend on the truth of any statement recorded in a document.

**4.1** Between the MASPER Registrar's first report of 3 May 2024 at 3:06 pm and the first reply of 9 May 2024 at 9:20 am: **five days, eighteen hours and fourteen minutes**. Her second report was sent on the fifth calendar day after the first; the reply was sent on the sixth.

**4.2** Between the first email of the Integrated Respiratory Service of 15 May 2024 at 11:47 am and its second of 20 May 2024 at 11:03 am: **the fifth calendar day**. Between that first email and the Appellant's escalation of 20 May 2024 at 2:05 pm: **five days, two hours and eighteen minutes**. Between the Service's second email and that escalation: **three hours and two minutes**. Between the escalation and the reply at 4:30 pm: **two hours and twenty-five minutes**, that reply being sent two hours after the conclusion of the office hours stated to all Switchboard staff on 17 May 2024.

**4.3** Between the Appellant's fatigue enquiry of 8 April 2024 and the response of 1 May 2024: **23 days**, during which the Respondent does not allege that any response was made.

**4.4** Between the third submission of the special pandemic leave request at 11:07:28 on 29 February 2024 and its approval at 11:21:03 the same morning: **thirteen minutes and thirty-five seconds**. Between the creation of the draft on 20 February 2024 and the final approval on 1 March 2024: **ten days, four hours, forty minutes and twenty seconds**.

**4.5** Between the removal of database access on 18 July 2023 and 18 June 2024: **eleven months**, during which the Respondent does not allege that access was restored. Between 23 August 2023 and 17 May 2024: **nine months**, during which the Respondent does not allege that fixed office hours were stated to the Switchboard staff.

*Particulars: paragraphs 62 to 64, 92, 97 to 98, 102 to 103, 124 to 125, 249 of the notice to admit facts served 28 August 2026, admitted 8 September 2026.*

### 5. Matters the Respondent does not allege, and documents it does not list

The following are admitted as to the state of the Respondent's amended statement of facts and contentions of 13 May 2026 and its amended List of Documents of 14 August 2026. They are not admissions as to the truth of the contents of any document, and the qualification in the Respondent's letter of 8 September 2026 does not reach them.

**5.1 As to the directory and the changes to process.** That access to the database was restored to the Appellant before 18 June 2024; that any document records consultation with Switchboard operators before the change communicated on 15 April 2024; that agreement under clause 6.2 of the Award was obtained, or a ballot conducted, before that change.

**5.2 As to what followed the reports at the console.** That any communication was sent to Logan Switch or the Switchboard staff about the occasions reported on 3 and 8 May 2024 before 10:15 am on 9 May 2024; that any response was made to the Integrated Respiratory Service before 20 May 2024, or before 2:05 pm on that day; that any document created on 20 May 2024 records the discussion referred to in the reply of that afternoon; that any communication was sent by either named person to that Service on that day; that the contact-details document was amended on or before 20 May 2024; that the Switchboard staff were notified of the modifications made to it on 22 February 2024; or that the Appellant was rostered to work after 2:05 pm on 20 May 2024.

**5.3 As to the office hours.** That fixed office hours were stated to the Switchboard staff at any time between 23 August 2023 and 17 May 2024.

**5.4 As to the Communication Book.** That the entry removed, or its author, is identified; that the removed page has been located or that any copy of it exists; that any entry made by the Appellant remains in the book; or that the book ceased to be in the possession of Metro South Health during the Appellant's employment. The book, and any page or entry from it, is not listed in the List of Documents.

**5.5 As to the special pandemic leave.** That either person recorded in the leave history was a Band 9 delegate at any relevant time; the identity of the person who exercised the sub-delegated power in respect of Process Reference 15480560; or that any other Switchboard employee was required to submit such a request personally through myHR in February 2024.

**5.6 As to the roster and fatigue.** That the Switchboard Manager got in touch with the Appellant about alternative shifts after the meeting of 16 April 2024; that the fatigue toolkit was reviewed or feedback given before 18 June 2024; that the consecutive shifts of 17 and 18 March 2024 arose from a staff-initiated shift swap; that any response was made to the fatigue enquiry between 9 April and 1 May 2024; that any fatigue risk assessment was conducted, that any fatigue risk management training was provided, or that fatigue

risk management assessment was implemented at the Switchboard, before 30 June 2024; or that any change was made to the operating procedures of the Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.

**5.7 As to the Appellant's performance and conduct.** That he was subject to any disciplinary process, or that his work performance was the subject of any formal performance management process, before 18 June 2024; nor does the Respondent describe any communication with him before that date as a warning. Paragraph 27 of its statement of facts and contentions does not identify, by particular, date, document or cross-reference, the management action relied upon for the contention in that paragraph.

*Particulars: paragraphs 16, 21 to 22, 25, 55, 69, 73, 90, 93, 99, 105 to 110, 129 to 131, 142, 150 to 153, 166, 180 to 181, 213, 216, 234, 250, 269 to 273, 300 to 303 of the notice to admit facts served 28 August 2026, admitted 8 September 2026. Paragraph 154 of that notice is not admitted.*

## PART C — CONTENTIONS

**1. ■ The onus, accepted.** The Appellant accepts that he bears the onus of proving every element of his case on the balance of probabilities, including that his injury did not arise out of, or in the course of, reasonable management action taken in a reasonable way (Workers' Compensation Appeal Guide, Part 7.3; *Prizeman v Q-COMP* [2005] ICQ 43, where Hall P held that the onus is on the worker to establish that management action was unreasonable or taken in an unreasonable way, and that in the absence of evidence to support that assertion management action must be considered reasonable). The Appellant does not contend that the Respondent bears that onus, and the contrary contention in the Amended Form 9A filed 7 April 2026 is withdrawn.

**2. How the onus is discharged.** *Prizeman* presumes reasonableness only in the absence of evidence. The evidence is now on the record and is not in dispute. In particular the Respondent admits, as to its own documents and its own pleading: that access to the database was removed and is not alleged to have been restored before 18 June 2024; that no document recording consultation with Switchboard operators before the change of 15 April 2024 is listed; that nine occasions of misdirected calls were reported by a clinician and nothing is alleged to have been sent to the Switchboard about them for six days; that no document of the discussion of 20 May 2024, no communication to the Integrated Respiratory Service, and no amendment to the contact-details document is listed; that the fatigue records do not exist, that the training applied only to health practitioners and clinical assistants, that fatigue assessment at the Switchboard began only after 30 June 2024, and that there were no consequential changes to operating procedures; and that complaints were managed solely by email or verbally with the complainant.

**3. Compensable injury — section 32(1).** The Appellant sustained a personal injury of a psychological nature arising out of, or in the course of, his employment, employment being **a significant contributing factor**. The injury is the diagnosed condition identified at Part A, arising from the course of conduct pleaded at Part B.2 and not from an event on a single day. The Respondent's own review decision so finds.

**4. Section 32(5)(a), first limb — circumstances that are not management action.** The following circumstances pleaded in Stressor 1 are not action taken by or on behalf of the employer against the worker. They are the state in which the work was required to be performed: (i) the position was required to keep the contact and paging information accurate while the means of amending it was held by others (Stressor 1(a) to (c)); (ii) emergency response notifications reached the wrong medical team on nine occasions reported by a clinician, and the Switchboard was not told of them for six days (Stressor 1(g)); (iii) a clinical service was unable to assist patients or other clinical staff because a directory entry was wrong, and the entry is not alleged to have been amended (Stressor 1(h)); and (iv) complaints arriving at the console were, on the employer's own statement, managed solely by email or verbally with the complainant, with no consequential change to operating procedures (Stressor 1(p)). One decision was taken, on 18 July 2023, for a stated reason that was expressly temporary — a project role fixing the database, with access removed *while* that work was done. The Respondent does not allege that the project was completed, that the role ceased, or that access was restored, at any time before 18 June 2024, and the Coordinator was still circulating the Switchboard on-call roster in May 2024. What followed the decision is therefore not the decision but the condition it left in place for eleven months, and the exclusion in subsection (5) does not reach it.

**5. Section 32(5)(a), second limb — where the circumstances are management action, it was not taken in a reasonable way.** If and to the extent that the following are management action: (i) the change notified on 15 April 2024 was effective the day it was notified, with no document of prior consultation, against clause 3.2 of the certified agreement, which requires contribution to decision-making not only in appearance but in fact and a genuine opportunity to influence the outcome before a final decision is made (Stressor 1(e), Stressor 1(f)); (ii) the means of correcting the remuneration record were held by others: the correction was returned across four fortnights to the only person able to submit it, the claim submitted on 28 May 2024 remains recorded as Part Completed, and neither claim reference identified by Payroll appears in the report at all — and the decision under appeal, having found the occurrence of those issues to be a blemish, rested its conclusion upon their eventual resolution (Stressor 2(c) to (e), Stressor 2(h)); (iii) the special pandemic leave application was declined twice on reasons which do not correspond, the second of which the Respondent concedes was wrong on its own review, and the entitlement was obtained only on a third submission ten days after the first (Stressor 1(l), Stressor 2(g)); (iv) the fatigue enquiry of 8 April 2024 drew no response for 23 days (Stressor 3(j)); (v) the Appellant's roster was decided upon and the decision expressly withheld from him (Stressor 3(b)); (vi) the shifts of 17 and 18 March 2024 were rostered contrary to the standards in the industrial instruments pleaded at Stressor 3(f) — clause 15.2(c) of the Award, which provides that a shift worker shall not perform more than two consecutive shifts, and clause 15.2(d), which requires changes within a roster to be by agreement or, failing agreement, on 24 hours' notice or at double time — and the roster concerns then raised were not addressed in the manner clauses 9.14.3 and 9.14.4 of the certified agreement require, against the background that fatigue risk management and guidelines for hours of work are hazards the parties to that agreement expressly agreed to address (clause 7.1.5(b) and (c)). **The review decision has already found the rostering of those two shifts to be unreasonable management action.** The instruments identify the standard against which that finding was, and is, correctly made. The intervals at Part B.4 and the matters at Part B.5 are relied upon. (vii) As to the management action taken in response to the Appellant's complaint — the factor the decision under appeal finds contributed to the injury — the assessment was finalised fourteen days after the complaint was lodged and seven days after particulars were first sought; the concerns and complaints were then referred to the same function that had distributed the complaint within six minutes of receiving it and had sent the complaint form to the Director the following morning; the meeting to discuss the outcome was convened by that Director on dates within a period for which the Appellant is certified as having had no functional capacity; and no document recording what was done with either referral has been disclosed (Stressor 1(n)). The concerns were referred to Human Resources twice — on 27 May 2024 and again on 24 December 2024 — and the conditions pleaded at Stressor 1(a) to (i) were, on the Respondent's own material, unchanged after both. The Appellant does not allege that any of this was done for any improper purpose. He contends only that it was not, in those respects, action taken in a reasonable way.

**6. Delaney.** Where multiple management actions form a course of conduct, their reasonableness may be evaluated in context and as a whole. That evaluation must nevertheless first identify the circumstances that constitute management action. Operational conditions that

are not management action do not become management action merely because they occurred alongside management decisions.

**7. Mahaffey.** The presence of reasonable management action among the circumstances contributing to an injury does not necessarily enliven the exclusion where an unreasonable management action, or a circumstance that is not management action, also had a sufficient causal connection to the disorder. The rostering of the shifts on 17 and 18 March 2024 was found in the review decision to constitute unreasonable management action. The Appellant relies upon the medical and contemporaneous evidence to establish its contribution as part of the pleaded course of causative circumstances.

**8. The effect of the admissions.** The admissions are made for this proceeding under rule 49 and are relied upon as evidence of the existence and terms of the documents admitted, and of the matters the Respondent's statement of facts and contentions and List of Documents do not contain. The Appellant does not contend that any admission determines the reasonableness of any conduct; that is a matter for the Commission.

**9. The hearing de novo.** The Respondent says no finding in Review Decision 69983 binds the Commission. That is accepted, and it applies to the whole of the decision. The conclusion under appeal is a conclusion of that decision, reached upon the findings recorded in it.

**10. The Respondent's pleaded case.** Paragraph 27 of the amended statement of facts and contentions does not identify, by particular, date, document or cross-reference, the management action relied upon. No disciplinary process, formal performance management or communication described as a warning before 18 June 2024 is alleged.

*Particulars: paragraphs 238, 295, 300 to 303 of the notice to admit facts served 28 August 2026, admitted 8 September 2026.*

## PART D — THE QUESTIONS FOR DETERMINATION

1. Did the Appellant sustain a personal injury of a psychological nature?
2. Did that injury arise out of, or in the course of, his employment, and was his employment **a significant contributing factor** to it?
3. Which of the circumstances pleaded in Part B.2 constitute management action taken by or on behalf of the employer in connection with the Appellant's employment, and which are conditions in which the work was required to be performed?
4. In respect of those circumstances that are management action, was that action reasonable and was it taken in a reasonable way?
5. Does section 32(5)(a) of the Act operate to exclude the Appellant's psychological disorder from the definition of injury, having regard to the circumstances found not to be management action and to any management action found not to have been reasonable or not to have been taken in a reasonable way?

## PART E — ORDERS SOUGHT

1. That the appeal be allowed.
2. That the decision of the Respondent dated 24 October 2024, Review Decision 69983, be set aside.
3. That it be declared that the Appellant sustained an injury within the meaning of section 32 of the Workers' Compensation and Rehabilitation Act 2003, being a psychological injury arising out of, or in the course of, his employment with Metro South Hospital and Health Service, employment being a significant contributing factor to that injury.
4. That the Appellant's application for compensation be accepted, and that the matter be remitted to the Respondent for assessment of the Appellant's entitlement to compensation consequent upon that acceptance.
5. Such further or other order as the Commission considers appropriate.
6. Costs reserved.